

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1028

Introduced by Juarez, 5; Cavanaugh, J., 9; Raybould, 28.

Read first time January 13, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Livestock Waste Management Act; to
- 2 amend section 54-2416, Reissue Revised Statutes of Nebraska; to
- 3 provide requirements for registering a nutrient management plan and
- 4 the application of livestock waste or litter as provided; to
- 5 harmonize provisions; and to repeal the original section.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 54-2416, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 54-2416 Sections 54-2416 to 54-2438 and section 2 of this act shall
4 be known and may be cited as the Livestock Waste Management Act.

5 **Sec. 2.** (1) Each large concentrated animal feeding operation, as
6 defined in 40 C.F.R. 122.23, as such regulation existed on January 1,
7 2026, shall register its nutrient management plan with the department and
8 shall update its plan annually thereafter. The plan and any supporting
9 documentation shall be made publicly available on the department's
10 website.

11 (2) For any acres where livestock waste or litter is applied
12 pursuant to a nutrient management plan, cover crops shall be planted
13 following application unless the field has perennial cover crops. The
14 establishment and maintenance for such cover crops shall be paid by the
15 entity implementing the nutrient management plan. When reasonably
16 possible, the entity implementing the nutrient management plan shall use
17 regenerative agricultural practices which minimize tillage, establish
18 living roots systems, armor the soil with increased plant matter build
19 up, increase bio-diversity, integrate livestock grazing systems, and
20 respect and restore a region's native ecosystem.

21 (3) For any acres where livestock waste or litter is applied
22 adjacent to a running waterway pursuant to a nutrient management plan, a
23 minimum thirty-foot perennial-grass buffer shall be established and
24 maintained between the area of application and the waterway. The
25 establishment and maintenance for such buffer shall be paid by the entity
26 implementing the nutrient management plan. The entity implementing the
27 nutrient management plan shall also annually compensate the landowner of
28 such buffer for production losses on such buffered acres prices as
29 determined by the department.

30 **Sec. 3.** Original section 54-2416, Reissue Revised Statutes of
31 Nebraska, is repealed.